

ALITO, J., dissenting

non-unanimous verdicts, many more allow six-person juries.<sup>29</sup> Repudiating the reasoning of *Apodaca* will almost certainly prompt calls to overrule *Williams*.

C

Up to this point, I have discussed the majority's reasons for overruling *Apodaca*, but that is only half the picture. What convinces me that *Apodaca* should be retained are the enormous reliance interests of Louisiana and Oregon. For 48 years, Louisiana and Oregon, trusting that *Apodaca* is good law, have conducted thousands and thousands of trials under rules allowing non-unanimous verdicts. Now, those States face a potential tsunami of litigation on the jury-unanimity issue.

At a minimum, all defendants whose cases are still on direct appeal will presumably be entitled to a new trial if they were convicted by a less-than-unanimous verdict and preserved the issue in the trial court. And at least in Oregon, even if no objection was voiced at trial, defendants may be able to challenge their convictions based on plain error. See Ore. Rule App. Proc. 5.45(1), and n. 1 (2019); *State v. Serrano*, 355 Ore. 172, 179, 324 P. 3d 1274, 1280 (2014). Oregon asserts that more than a thousand defendants whose cases are still on direct appeal may be able to challenge their convictions if *Apodaca* is overruled. Brief for State of Oregon as *Amicus Curiae* 12–13.<sup>30</sup> The State also reports that “[d]efendants are arguing that an instruction allowing for non-unanimous verdicts is a structural error that requires reversal for *all* convictions, even for those for which the jury was

---

<sup>29</sup>See Ariz. Rev. Stat. Ann. §21–102 (2013); Conn. Gen. Stat. §54–82; Fla. Rule Crim. Proc. §3.270 (2019); Ind. Code §35–37–1–1(b)(2); Utah Code §78B–1–104 (2019).

<sup>30</sup>The majority arrives at a different figure based on the number of felony jury trials in Oregon in 2018, see *ante*, at 108, and n. 68, but it does not take 2019 into account. And since we do not know how many cases remain on direct appeal, such calculations are unreliable.